

		the Court finds that the declaratory judgment Cross-Complainant seeks is an appropriate subject for a declaratory relief action. Cross-Defendant argues that declaratory relief is not necessary or proper because the Cross-Complaint only seeks to redress past wrongs, but the Court finds there is an ongoing ripe controversy as to the Parties respective rights and duties under the relevant insurance policies as it pertains to Cross-Defendant's duty to defend Cross-Complainant with respect to Ace's subrogation claim. Accordingly, the motion is denied as to both noticed issues. Cross-Complainant shall provide notice of this ruling.
3	Casate vs. Allview Real Estate 2026-01542936	Demurrer to Complaint Motion to Strike Complaint Continued. See minute order dated 6/23/26 (ROA 37).
4	Gallagher vs. Oak Tree Business Systems, Inc. 2021-01232788	Motion for Bifurcation Off calendar. See minute order dated 6/11/26 (ROA 167).
5	Garay vs. L'Abri Management, Inc 2026-01553144	Demurrer to Complaint Defendants L'Abri Management, Inc.; Beccy Hasselbarth, and individual and as Trustee of the Beccy Hasselbarth Trust dated February 1, 2018; and Fay Gallegos' Demurrer to the Complaint is OVERRULED in part and SUSTAINED in part. Fifth Cause of Action – Intentional Infliction of Emotional Distress To state a cause of action for Intentional Infliction of Emotional Distress ("IIED"), the plaintiff must allege: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (<i>Yau v. Santa Margarita Ford, Inc.</i> (2014) 229 Cal.App.4th 144, 161.) For conduct to be outrageous for purposes of IIED, the conduct must be so extreme as to exceed all bounds of that usually tolerated in a civilized society. (Id.) In addition, "[the defendant's] conduct [must be] directed at the plaintiff, or occur in the presence of a plaintiff of

	whom the defendant is aware.” (<i>Christensen v. Superior Court</i> (1991) 54 Cal.3d 868, 903 (emphasis added).) Here, the Complaint alleges observed cockroaches in the home when they moved into the property in 2023. (Complaint, ¶ 23.) In January 2025, they began experiencing a cockroach infestation and contacted the property manager. (Complaint, ¶ 28.) The infestation contaminated Plaintiffs’ food, dishes, cookware, furniture, clothing, appliances, pet food containers, and other personal belongings. (Complaint, ¶¶ 26, 33-40, 71-73, 143.) Plaintiffs repeatedly informed Defendants about the cockroach infestation and that it was worsening. (Complaint, ¶ 28.) Defendants sent pest control technicians to address Plaintiffs’ complaints, but they were not sufficiently addressed. (Complaint, ¶¶ 32, 62.) Plaintiffs also allege ongoing plumbing issues, such as leaks, that were not properly addressed. (Complaint, ¶¶ 58-62.) The leaks caused moisture to accumulate inside Plaintiffs’ unit. (Ibid.) Defendants would occasionally send maintenance personnel to inspect the issue, but they resulted in no meaningful repairs. (Complaint, ¶ 62.) Defendants argue that sending pest control technicians, plumbers, and maintenance personnel in an effort to address Plaintiffs’ complaints is hardly the type of conduct that is “not to be tolerated in a civilized society.” However, whether a landlord’s failure to remediate a habitability issue on leased premises is sufficiently extreme and outrageous to support a lessees’ cause of action for IIED is a question of fact, which cannot be resolved at the pleading stage. (See <i>Burnett v. Chimney Sweep</i> (2004) 123 Cal.App.4th 1057, 1068-1069.) <i>Erlach v. Sierra Asset Servicing, LLC</i> (2014) 226 Cal.App.4th 1281, 1299.) Thus, it cannot be said that Defendants’ failure to properly remediate the cockroach and plumbing issues is not extreme or outrageous conduct, especially where, as here, Plaintiffs allege a persistent presence of cockroaches in their residence. Additionally, Plaintiffs have sufficiently alleged emotional distress as a result of Defendants’ conduct. The Complaint states Plaintiffs suffered panic, severe emotional distress, sleep disturbances, persistent fear, ongoing anxiety, significant embarrassment and humiliation as a result of conditions at the subject property. (Complaint ¶¶ 142, 144-145.) (See <i>Garcia v. Myllya</i> (2019) 40 Cal.App.5th 990, 1000 [finding that extreme pest infestations and
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	other poor building conditions could support the tenants’ award of emotional distress damages.].) Accordingly, the demurrer to the fifth cause of action is OVERRULED. Sixth Cause of Action – Negligent Infliction of Emotional Distress The negligent causing of emotional distress is not an independent tort, but the tort of negligence to which the traditional elements of duty, breach of duty, causation, and damages apply. (<i>Burgess v. Superior Court</i> (1992) 2 Cal.4th 1064, 1072.) Plaintiffs’ NIED claim is duplicative of their negligence claim as both causes of action allege emotional distress damages. The Fourth Appellate District has recognized duplicative as a basis for sustaining a demurrer. (<i>Palm Springs Villas II Homeowners Assn., Inc. v. Parth</i> (2016) 248 Cal.App.4th 268, 290.) Accordingly, the demurrer to the sixth cause of action is SUSTAINED without leave to amend. Motion to Strike Defendants L’Abri Management, Inc.; Beccy Hasselbarth, and individual and as Trustee of the Beccy Hasselbarth Trust dated February 1, 2018; and Fay Gallegos’ Motion to Strike is DENIED. Defendants move to strike allegations in the Complaint related to punitive damages. Code of Civil Procedure section 436 provides, “The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading, (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” A motion to strike may be used to remove a claim for punitive damages that is not adequately supported by the facts alleged in the complaint. (<i>Cryolife, Inc. v. Superior Court</i> (2003) 110 CalApp.4th 1145; <i>Kaiser Foundation Health Plan, Inc. v. Superior Court</i> (2012) 203 Cal.App.4th 696.) Civil Code section 3294 states that,
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		“In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” (Civ. Code, § 3294, subd. (a).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.” “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) Here, the Complaint alleges Defendants knew their unit was suffering from severe cockroach infestations, microbial growth, plumbing leaks and structural openings that allowed pests to enter. (Complaint, ¶ 134.) Defendants were repeatedly notified of these dangerous and unsanitary conditions, but chose to ignore the complaints and/or failed to meaningfully repair or remediate the conditions. (Complaint, ¶ 135-137.) Defendants allowed the cockroach infestation to continue while collecting rent from Plaintiffs, and with a reckless disregard for the probability that Plaintiffs would suffer severe emotional distress from having to live with cockroaches. (Complaint, ¶ 138.) While the Complaint acknowledges Defendants’ attempts to remediate the cockroach and plumbing issues, it also alleges Defendants engaged in “superficial and ineffective responses” and allowed the conditions to persist despite repeated complaints. The cockroaches infiltrated Plaintiffs’ kitchenware, furniture, and personal belongings and even crawled into Plaintiff’s ear. Failure to effectively and promptly remediate the issues could be found to be oppressive and/or malicious. Accordingly, the motion to strike punitive damages allegations is DENIED. Clerk to give notice.
6	Kiani vs. Koffey 2025-01484637	Motion to Appear Pro Hac Vice Continued. See minute order dated 6/23/26 (ROA 259).
7	Jin vs. Bloomingdale's, LLC	CMC Motion for Reclassification Demurrer to Complaint